WASHINGTON

WILLAMETTE MERIDIAN

T. 6 N., R. 31 E.,
Sec. 8, SW¼SE¼;
Sec. 17, SW¼NW¼.
T. 7 N., R. 31 E.,
Sec. 24, SW¼SE¼, lying south of the southerly line of right-of-way of the N. P. Ry. Co.
T. 10 N., R. 28 E.,
Sec. 2, Lot 1, lying west of a straight line that intersects the south line of Lot 2 of said Section 2 at a point lying westerly, a distance of 330 feet, from the southeast corner thereof and that intersects the north line of said Lot 1 at a point lying westerly, a distance of 495 feet, from the northeast corner thereof.
T. 11 N., R. 28 E.,
Sec. 26, Lot 5.
All unsurveyed islands in the Snake River lying downstream from the north line of Section 17, Township 9 North, Range 32 East, to its confluence with the Columbia River and all unsurveyed islands in the Yakima River lying downstream from the north line of Section 16, Township 9 North, Range 28 East to its confluence with the Columbia River.

The areas described, exclusive of unsurveyed islands, aggregate approximately 98.80 acres.

This order shall be subject to existing withdrawals for reclamation purposes so far as they affect any of the above-described lands; and shall take precedence over, but not otherwise affect the Executive order of June 2, 1920, Power Site Reserve No. 742.

ORME LEWIS,
*Assistant Secretary of the Interior.*

MARCH 15, 1955.

[F. R. Doc. 55-2252; Filed, Mar. 18, 1955; 8:47 a. m.]

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[Public Land Order 1097]

MONTANA

REVOKING EXECUTIVE ORDERS NO. 2106 OF DECEMBER 15, 1914, AND NO. 5654 OF JUNE 20, 1931, WHICH RESERVED PUBLIC LANDS FOR USE OF THE FOREST SERVICE AS AN ADMINISTRATIVE SITE

By virtue of the authority vested in the President by Section 1 of the act of June 25, 1910, ch. 421 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 2106 of December 15, 1914, withdrawing the following-described lands for use of the Forest Service, Department of Agriculture, as the Duck Creek Administrative Site in connection with the administration of the Helena National Forest, is hereby revoked:

MONTANA PRINCIPAL MERIDIAN

T. 8 N., R. 3 E.,
Sec. 6, Lots 11, 12, 13, 14, 15 and 16.

The tracts described contain 158.91 acres.

2. Executive Order No. 5654 of June 20, 1931, withdrawing the following-described lands for use of the Forest Service, Department of Agriculture, as an addition to Duck Creek Ranger Station in connection with the administration of the Helena National Forest, is hereby revoked:

MONTANA PRINCIPAL MERIDIAN

T. 8 N., R. 3 E.,
Sec. 5, lot 15;
Sec. 6, lot 1.

The tracts described contain 110.97 acres.

3. Lot 1, sec. 6, T. 8 N., R. 3 E., has been patented. The remaining lands are located adjacent to Duck Creek approximately 16 miles northeast of Townsend, Montana. The topography is steep and mountainous except for a relatively small area adjoining Duck Creek. The vegetative cover consists of native grasses, sage brush, willows, and scattered yellow pine and Douglas fir. Lot 15, sec. 5, supports a good stand of yellow pine and Douglas fir. The timber is of saw timber size and valuable for commercial timber.

4. No application for the lands may be allowed under the homestead, desert-land, small tract, or any other non-mineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

5. This order shall not otherwise become effective to change the status of the described lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall become subject to application, petition, location and selection subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable laws, and the 91-day preference-right filing period for veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended.

6. Veterans' preference-right applications under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279-284) as amended, may be filed on or before 10:00 a. m., on the 35th day after the date of this order, and those covering the same lands shall be treated as though simultaneously filed at that time. Applications filed under the act after that time and during the succeeding 91 days shall be considered in the order of filing. Applications by the general public under the public-land laws, filed on or before 10:00 a. m., on the 126th day after the date of this order shall be treated as though simultaneously filed at that time, where the applications are for the same lands; otherwise, priority of filing shall govern.

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Billings, Montana.

ORME LEWIS,
*Assistant Secretary of the Interior.*

MARCH 15, 1955.

[F. R. Doc. 55-2253; Filed, Mar. 18, 1955; 8:47 a.m.]

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## TITLE 49—TRANSPORTATION

### Chapter I—Interstate Commerce Commission

[Order No. 18; Docket No. 3666]

PARTS 71–78—EXPLOSIVES AND OTHER DANGEROUS ARTICLES

MISCELLANEOUS AMENDMENTS

*Correction*

In Federal Register Document 55-1267, published at page 949 of the issue for Tuesday, February 15, 1955, the following changes should be made:

1. In the headnote of the third column of the table in § 73.308 (a), "Note 2" should read "Note 1".

2. In § 74.526 (o) (3), "8 miles per hour" should read "9 miles per hour."

3. The asterisks following the headnote of § 78.34 should be deleted.

4. The section following § 78.116-7, now reading "§ 78.116-3", should be designated "§ 78.116-8".

5. In the third line of § 78.250-3 the words "welding and brazing" should be deleted.

6. In §§ 78.277-16 (a) (1) and 78.277-17 (c) (Report) the three asterisks should be replaced with four asterisks.

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# PROPOSED RULE MAKING

## DEPARTMENT OF AGRICULTURE

### Agricultural Marketing Service

### [ 7 CFR Part 52 ]

CANNED PEAS

U. S. STANDARDS FOR GRADES [1]

Subsequent to the publication on January 1, 1954 (19 F. R. 13), of a proposed revision of the current United States Standards for Grades of Canned Peas, views and arguments were received from interested persons indicating a need for further study relative to the proposed grade standards. Thereafter the time for filing views and comments was extended until April 1, 1954, and further extended until February 1, 1955. After such study, this second notice is hereby given that the U. S. Department of Agriculture is considering the revision of United States Standards for Grades of Canned Peas pursuant to the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087 et seq.; 7 U. S. C. 1621 et seq.). This revision, if made effective will be the sixth issue by the Department of grade standards for this product.

[1] Compliance with these standards does not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act.